

CYBERNETIC TOKEN EXCHANGE AGREEMENT

v1.0

This Cybernetic Token Exchange Agreement (CyTEA) is being entered into by and between each of the Parties as of the Effective Time with the intention of completing a potential Token Exchange wherein Blockchain Tokens owned by one Party would be exchanged for Blockchain Tokens owned by the other Party in a final sale/purchase transaction.

The Parties wish to enter into this Agreement via specific Blockchain Systems and to commit their respective Blockchain Tokens to the control of a particular Smart Contract that will serve as a non-custodial escrow enabling automated enforcement of any applicable conditions precedent to the Token Exchange, consummation of the Token Exchange if the conditions are satisfied prior to the Expiration Time, and termination of the escrow and refund of the Blockchain Tokens in the event that the Token Exchange is not consummated before the Expiration Time, each through Blockchain System and Smart Contract transactions as further specified below.

Certain capitalized terms used in this Agreement are defined in Section 6.

This document and the Smart Contracts referred to herein were authored by MetaLeX. By entering into or using this Agreement or any of such Smart Contracts, you also acknowledge and agree to the MetaLeX Terms, License and Disclaimers set forth on Exhibit C.

1. Token Exchange.

- 1.1 Token Exchange Terms. The Proposing Party and Confirming Party hereby agree to exchange Proposing Party Tokens (minus the applicable portion of the MetaLeX Donations) for Confirming Party Tokens (minus the applicable portion of the MetaLeX Donations) at the Closing (such exchange, the “*Token Exchange*”). The Proposing Party Tokens and Confirming Party Tokens actually so exchanged in the Token Exchange at the Closing are referred to herein as the “*Exchanged Tokens*”.
- 1.2 MetaLeX Donation. In consideration of MetaLeX’s efforts in researching, developing and deploying the template for this Agreement, the Ricardian Tripler Factory Smart Contract, the LeXscroW Smart Contract, and a web application enabling more convenient usage thereof, the Parties agree to make the MetaLeX Donation, as a deduction to the Proposing Party Tokens and Confirming Party Tokens, upon (and subject to the occurrence of) the Token Exchange. All MetaLeX Donations are final and non-refundable.
- 1.3 Pre-Closing Obligations. As promptly as reasonably practicable after the completion of the Adoption Procedures by the Parties: (a) the Proposing Party shall deposit the Proposing Party Tokens into the LeXscroW Smart Contract; and (b) the Confirming Party shall deposit the Confirming Party Tokens into the LeXscroW Smart Contract.
- 1.4 Closing. The Closing shall occur when, at any time prior to the Termination Time when all the Closing Conditions are satisfied, the `execute()` function on the LeXscroW Smart Contract is called and the execution of such function is Ethereum-Finalized such that the Token Exchange is consummated on the Designated Blockchain System.
- 1.5 Change of Ownership. As of the Closing, the Token Exchange shall automatically and without further action of the parties be deemed a full and final sale, purchase, transfer, assignment and

assumption of all ownership of, right, title to and interest in the Exchanged Tokens, wherein:

- (a) all ownership of, right, title to and interest in the Proposing Party Tokens shall be deemed sold, transferred, and assigned by the Proposing Party to the Confirming Party and purchased and assumed by the Confirming Party from Proposing Party; and
- (b) all ownership of, right, title to and interest in the Confirming Party Tokens shall be deemed sold, transferred, and assigned by the Confirming Party to the Proposing Party and purchased and assumed by the Proposing Party from Confirming Party.

1.6 Termination Rights.

- (a) This Agreement may be terminated and the transactions contemplated hereby abandoned only as follows (the time of any such termination, the “**Termination Time**”):
 - (i) by mutual agreement of the Parties, at any time prior to the Closing, which shall be indicated solely by both Parties passing as `true` the `_electToTerminate` boolean variable parameter to the `electToTerminate()` function of the LeXscroW Smart Contract, with the executions of such function, and the resulting setting of the `terminationConsent` mapped boolean variable for each Party’s respective `partyBlockchainAddy` referred to in Section 6.1(a) and the `isExpired` boolean variable all set to `true` in the LeXscroW Smart Contract, and the LeXscroW Smart Contract returning the Proposing Party Tokens to the Proposing Party (at the Designated Blockchain System address referred to in Section 6.1(a)(i) and the Confirming Party Tokens to the Confirming Party (at the Designated Blockchain System address referred to in Section 6.1(a)(ii)), all of the foregoing being Ethereum-Finalized (a “**Mutual Termination**”); or
 - (ii) by the Expiration Time occurring (as Ethereum-Finalized) prior to the Closing.
- (b) Effect of Termination.
 - (i) Following the Expiration Time if a Mutual Termination has not already occurred, any person may call `execute()` or `checkIfExpired()` on the LeXscroW Smart Contract such that, once the execution of such function is Ethereum-Finalized, the LeXscroW Smart Contract will return the Proposing Party Tokens to the Proposing Party (at the Designated Blockchain System address referred to in Section 6.1(a)(i) and the Confirming Party Tokens to the Confirming Party (at the Designated Blockchain System address referred to in Section 6.1(a)(ii)).
 - (ii) At the Termination Time, this Agreement shall forthwith become void and there shall be no liability or obligation on the part of either Party except to the extent that the termination of this Agreement was directly caused by a breach by such Party of the covenant set forth in Section 1.3 (assuming the other Party complied with Section 1.3) or a breach of or inaccuracy in a representation/warranty of such Party in Section 2 (if such breach or inaccuracy was material, knowing and intentional and the Closing of the Token Exchange could reasonably have been expected to have occurred but for such breach or inaccuracy).

2. Representations/Warranties.

Each Party hereby represents and warrants, to and for the benefit of the other Party, as of the Effective Time and as of the Closing, as follows in this Section 2.

- 2.1** Token Ownership. Such Party owns the Exchanged Tokens to be delivered by such Party to the other Party pursuant to this Agreement, free and clear of all liens, claims, encumbrances, and transfer restrictions, other than any restrictions on transfer or delivery that do not require the consent of third Parties to effectuate the Token Exchange and will not conflict with such Party's performance of such Party's obligations under this Agreement or the consummation of the Token Exchange.
- 2.2** Token Agreements. Except for the rights and other agreements described herein, there are no outstanding options, warrants, rights (including conversion or preemptive rights and rights of first refusal or similar rights) or agreements, orally or in writing, to purchase or acquire the Exchanged Tokens to be delivered by a Party to the other from such Party.
- 2.3** Capacity, Organization and Good Standing. Such Party is either: (a) an individual of the age of majority and with the capacity to contract in the individual's jurisdiction and under the Governing Jurisdiction; or (b) a legal entity duly formed, organized, validly existing and in good standing under the laws of its jurisdiction of formation.
- 2.4** Authorization; Enforceability. If such party is an entity, all actions necessary or required to be taken by such Party's directors, managers, officers, members, stockholders, and other persons with a direct or indirect authority over or economic or beneficial interest in such Party in order to authorize such Party to enter into, and perform such Party's obligations under, this Agreement have been taken and such Party has full power and authority to enter into this Agreement. This Agreement, when executed and delivered by such Party and the other Parties hereto, shall constitute a valid and legally binding obligation of such Party, enforceable against such Party in accordance with its terms, except as limited by: (a) applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally or (b) laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.
- 2.5** Compliance with Other Agreements Etc. The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement by such Party will not result in a breach or violation of or default under, or otherwise be in conflict with, any instrument, judgment, order, writ, decree, contract or agreement to which such Party is a Party or by which such Party or any of the Exchanged Tokens to be delivered by such Party are bound.
- 2.6** No Third-Party Fees/Commissions. Such Party has not entered into any understanding or agreement providing for, and, to the knowledge of such Party, is not and will not be liable for, any finder's fee or commission in connection with the transactions contemplated by this Agreement, in each case, other than any fees automatically payable through the Ricardian Tripler Factory Smart Contract or LeXscroW Smart Contract and any fees payable to operators of the applicable Blockchain Systems for effectuating the transactions contemplated by this Agreement.
- 2.7** Local Law Compliance. Such Party hereby represents that it has satisfied itself as to the full observance of the laws of its jurisdiction in connection with any invitation to subscribe for the Tokens or any use of this Agreement, including (a) the legal requirements within its jurisdiction for the purchase of the Tokens, (b) any foreign exchange restrictions applicable to such purchase, (c) any governmental or other consents that may need to be obtained, and (d) the income tax and other tax consequences, if any, that may be relevant to the purchase, holding, redemption, sale, or

transfer of the Tokens.

- 2.8** Disclosure of Information. Such Party has had an opportunity to discuss all matters relating to the Exchanged Tokens with the other Party's management and has had an opportunity to review the software and smart contract systems to which the Exchanged Tokens relate.
- 2.9** Private Key Ownership. Such Party is the sole and exclusive holder, knower and owner of the private key(s) controlling all blockchain addresses of such Party referred to in or necessary for the performance of this Agreement and of the "seed(s)" used to generate the pairing of such private key(s) with such addresses(es).
- 2.10** AML Compliance. None of the Exchanged Tokens to be contributed by such Party are derived from or related to any unlawful activities, including money laundering, terrorist financing or proliferation financing. Neither such Party nor any person for whom such Party is acting as agent or nominee in connection with the Token Exchange is the subject of (or is subject to) sanctions administered or enforced by any applicable intergovernmental organization or governmental authority, or is organized or residing in a country or territory that is the subject of country-wide or territory-wide sanctions administered or enforced by any applicable intergovernmental organization or governmental authority.
- 2.11** No Other Representations. In entering into and performing its obligations under this Agreement, such Party is not relying on any statement, representation or warranty, or omission of any statement, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise), other than the representations and warranties of the other Party expressly set forth in this Section 2. Except to the extent solely based on a breach of the representations and warranties of the other Party expressly set forth in this Section 2 made within the applicable statute of limitations, the other Party will have no liability or other obligation to such Party resulting from any statement, information, representation or warranty, or omission of any statement, information, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise) given to or made to such Party in connection with or relating directly or indirectly to the subject matter of this Agreement.

3. Qualified Code Deference

- 3.1** Qualified Deference to Results of the Ricardian Tripler Factory Smart Contract and LeXscroW Smart Contract. Except as otherwise provided in this Agreement in connection with a Material Adverse Exception Event, between the Parties, the results of operation of the Ricardian Tripler Factory Smart Contract and LeXscroW Smart Contract shall be determinative of the rights and obligations of, and shall be final, binding upon and not permitted to be contested or disputed by, the Parties with respect to the transactions contemplated by this Agreement; *provided, however*, that the foregoing shall not prohibit or limit any Legal Proceeding brought by or on behalf of a Party (the "***Plaintiff***") against the other Party (the "***Defendant***") to the extent that:
- (a) a prohibition or limitation of such Legal Proceeding would be illegal or unenforceable in the Governing Jurisdiction; or
 - (b) such Legal Proceeding satisfies both of the following two conditions:
 - (i) such Legal Proceeding is based on or arises from a Material Adverse Exception Event that either:

- (A) resulted directly or indirectly, in whole or in part, from the fraud, willful misconduct or knowing violation of any applicable Legal Requirement or applicable Order by the Defendant; or
 - (B) resulted in a material improper personal benefit to the Defendant directly or indirectly, in whole or in part, as a result of such Material Adverse Exception Event; and
- (ii) Plaintiff suffered or incurred Damages as a result of such Material Adverse Exception Event.

3.2 Handling of Material Adverse Exception Events.

- (a) *Exception Notice.* If either Party becomes aware that there is a Material Adverse Exception Event, such Party (the “***Sending Party***”) shall deliver or cause to be delivered to the other Party (the “***Receiving Party***”) a written notice (an “***Exception Notice***”):
 - (i) certifying that the Sending Party believes in good faith that there is a Material Adverse Exception Event;
 - (ii) describing in reasonable detail the events, facts, circumstances and reasons forming the basis of such belief;
 - (iii) if so desired by the Sending Party, describing in reasonable detail a proposal by the Sending Party of the actions to be taken, the agreements to be entered into, and the remedies to be sought by the Parties in response to the Material Adverse Exception Event an “***Exception Handling Proposal***”; and
 - (iv) including copies of any written evidence or other material written information, and summaries of any other evidence, relevant to, and material for the consideration of, the Material Adverse Exception Event and the other matters referred to in the Exception Notice.
- (b) *Exception Standstill.* During the period starting on the date of delivery of an Exception Notice and ending at the time an Exception Handling Determination is made (the “***Standstill Period***”), the Parties shall: (A) safeguard, set aside and hold in trust for the Parties any Blockchain Tokens that may have been received as a result of the Material Adverse Exception Event as described in the Exception Notice; and (B) refrain from using the Ricardian Tripler Factory Smart Contract and LeXscroW Smart Contract in a manner that would reasonably be expected to be affected by the Material Adverse Exception Event as described in the Exception Notice.
- (c) *Determination of Exception Handling.* The term “***Exception Handling Determination***” means a determination by either: (i) mutual written consent signed by both of the Parties; or (ii) the final resolution of a Dispute in accordance with Section 5.2, as to: (A) the existence or non-existence of a Material Adverse Exception Event and (B) if a Material Adverse Exception Event has been determined to exist, the actions to be taken, the agreements to be entered into, and the remedies to be sought in response thereto. Each of the Parties shall act in accordance with the Exception Handling Determination. If any amendment to this Agreement is required by the Exception Handling Determination, the Parties shall promptly

engage legal counsel to draft such amendment for execution by the Parties.

4. Key Management and Risks.

Each Party is responsible for maintaining access to and securing against access by third parties any ‘wallet’ or private keys to be used by such Party in connection with this Agreement and the transactions contemplated thereby, including the use of such private keys to sign this Agreement and to execute transactions on the applicable smart contracts as may be required under this Agreement. Each Party assumes all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties. Each Party hereby acknowledges and accepts that if the foregoing occurs, the Token Exchange may nevertheless be executed and such Party may nevertheless receive such Party’s intended portion of the Exchanged Tokens, or may otherwise suffer damages in connection with this Agreement and the transactions contemplated hereby, and such Party hereby assumes all such risks and waives and releases all rights and remedies against the other Party, and MetaLeX, that may otherwise exist in connection with such losses.

5. Miscellaneous

- 5.1 Governing Law.** This Agreement shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.
- 5.2 Dispute Resolution.** All Disputes shall be resolved in accordance with the Dispute Resolution Method.
- 5.3 Notices.** All notices and other communications given or made pursuant to this Agreement shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent in accordance with the `contactDetails` (set during the Adoption Procedures) of the Party to be notified.
- 5.4 Amendment; Waiver.** This Agreement may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of both of the Parties, and as stated in Section 3.2(c) herein. No waiver of any provision hereunder shall be deemed a waiver of any subsequent breach or default of the same or any other provision of this Agreement, unless so stated in writing by the waiving Party.
- 5.5 Severability.** Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the parties hereto agree that the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, the parties hereto agree to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 5.6 Entire Agreement.** This Agreement constitutes the entire agreement and understanding of the

parties with respect to the subject matter hereof and supersede any and all prior negotiations, correspondence, warrants, agreements, understandings duties or obligations between or involving the parties with respect to the subject matter hereof.

- 5.7** Further Assurances. At any time or from time to time after the Effective Time, the parties shall cooperate with one another, and, at the other's request, each party shall execute and deliver any further instruments or documents and to take all such further actions as such other Party may reasonably request in order to carry out the intent of this Agreement.
- 5.8** Delays or Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this Agreement, upon any breach or default of any other party under this Agreement, shall impair any such right, power, or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any party of any breach or default under this Agreement, or any waiver on the part of any party of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, whether under this Agreement or by law or otherwise afforded to any party, shall be cumulative and not alternative.
- 5.9** Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.
- 5.10** Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto and express beneficiaries hereof.
- 5.11** Rules of Construction.
- (a) *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
 - (b) *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of this Agreement.
 - (c) *No Limitation.* As used in this Agreement, the words "include," "including," "such as" and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words "without limitation." The word "or" shall mean the 'non-exclusive' "or" (e.g., if x and y are propositions, then "*x or y is true*" will be true where x is true but y is false, y is true but x is false, and both x and y are true).
 - (d) *References.* Except as otherwise indicated, all references in this Agreement to "Sections,"

“Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.

- (e) *Hereof*. The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- (f) *Captions/Headings*. The captions, headings and similar labels contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- (g) *Person*. The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

6. Defined Terms

6.1 “*Adoption Procedures*” means that this Agreement has been entered into by or on behalf of the Parties, as follows:

- (a) the Proposing Party has successfully called the `deployLeXscroWAndProposeDoubleTokenLeXscroWAgreement()` function and the Confirming Party has subsequently successfully called the `confirmAndAdoptDoubleTokenLeXscroWAgreement` of the Ricardian Tripler Factory Smart Contract, with such calls passing a single `AgreementDetailsV1` struct and the execution of such calls being Ethereum-Finalized, in each case, with the `AgreementDetailsV1` struct including arguments for each of:
 - (i) the `Party` struct variable for the Proposing Party, including the blockchain address (`partyBlockchainAddy` string variable), name (`partyName` string variable) and contact details (`contactDetails` string variable) of the Proposing Party;
 - (ii) the `Party` struct variable for the Confirming Party, including the blockchain address (`partyBlockchainAddy` string variable), name (`partyName` string variable) and contact details (`contactDetails` string variable) of the Confirming Party;
 - (iii) the `lockedAsset` struct variable for the Proposing Party, including the `tokenContract` address variable indicating the issuing contract address of the token being locked by the Proposing Party for the potential Token Exchange and the total amount of such token being locked by the Proposing Party for the potential Token Exchange as the `totalAmount` uint256 variable;
 - (iv) the `lockedAsset` struct variable for the Confirming Party, including the `tokenContract` address indicating the issuing contract address of the token being locked by the Confirming Party for the potential Token Exchange and the total amount of such token being locked by the Confirming Party for the potential Token Exchange as the `totalAmount` uint256 variable;
 - (v) the `expirationTime` uint256 variable;

- (vi) the `receipt` address variable specifying a Smart Contract (if any) for returning an informational receipt of a `lockedAsset` value (to be set to `address(0)` if inapplicable);
 - (vii) an IPFS URI of this Agreement, as the `legalAgreementURI` string variable;
 - (viii) the name of the jurisdiction whose law will govern this Agreement, as the `governingLaw` string variable;
 - (ix) the string “bindingArbitration,” the string “courtResolution” or another string specifying an alternative dispute resolution, as the `disputeResolutionMethod` string variable;
 - (x) a `Condition[]` array variable of `condition` struct variables indicating the conditions precedent to the closing of the Token Exchange; and
 - (xi) any additional conditions precedent to the Closing not included in the immediately preceding clause ‘(x)’ of this Section 6.1(a), as the `otherConditions` string variable; and
- (b) the Ricardian Tripler Factory Smart Contract has caused the deployment of the LeXscroW Smart Contract, which deployment has been Ethereum-Finalized.

6.2 “*Agreement*” means this Cybernetic Token Exchange Agreement (CyTE).

6.3 “*Blockchain*” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

6.4 “*Blockchain System*” means the combination of:

- (a) a Blockchain; and
- (b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read *from*, store data with respect to, create public proofs with respect to, or write to such Blockchain.

6.5 “*Blockchain Tokens*” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

6.6 “*Closing*” means the consummation of the Token Exchange through the LeXscroW Smart Contract in a transaction or series of transactions that have been Ethereum-Finalized.

6.7 “*Closing Conditions*” means conditions specified in the `Condition[]` array argument or `otherConditions` string argument set during the Adoption Procedures.

6.8 “*Confirming Party*” means the person who completed the Adoption Procedures by successfully calling the `confirmAndAdoptDoubleTokenLeXscroWAgreement` function of the

Ricardian Tripler Factory Smart Contract (with the execution of such function being Ethereum-Finalized) and whose name and other applicable information is contained in one of the **Party** struct arguments of the **AgreementDetailsV1** struct argument used in the Adoption Procedures.

- 6.9 “Confirming Party Tokens”** means the Blockchain Tokens referred to in [Section 6.1\(a\)\(iv\)](#).
- 6.10 “Consensus Attack”** means an attack that: (A) is undertaken by or on behalf of a person or group that controls a preponderance of the means of block production on the Designated Blockchain System or Ethereum; and (B) has the actual or intended effect of: (1) reversing any transaction made to or by any Designated Smart Contract after Ethereum-Finalization of such transaction, including any “double spend” attack having or intended to have such effect; or (2) preventing inclusion in blocks or Confirmation of any transaction made to or by any Designated Smart Contract, including any “censorship attack,” “transaction withholding attack” or “block withholding attack” having or intended to have such effect.
- 6.11 “Designated Blockchain System”** means the Blockchain System selected by the Parties for executing and performing this Agreement and the Token Exchange. Such Blockchain System shall include the relevant Ricardian Tripler Factory Smart Contract and LeXscroW Smart Contract selected by the Parties for this Agreement and the Token Exchange, and may be Ethereum or an Ethereum “layer-2”/“L2” such as Arbitrum, Base, Optimism, or ZKsync.
- 6.12 “Designated Smart Contracts”** means the Ricardian Tripler Factory Smart Contract and the LeXscroW Smart Contract.
- 6.13 “Dispute Resolution Method”** means:
- (a) if the value of the **disputeResolutionMethod** variable in the **AgreementDetailsV1** struct argument used in the Adoption Procedures is “bindingArbitration”, the dispute resolution procedures set forth on [Exhibit A](#);
 - (b) if the value of the **disputeResolutionMethod** variable in the **AgreementDetailsV1** struct argument used in the Adoption Procedures is “courtResolution”, the dispute resolution procedures set forth on [Exhibit B](#); and
 - (c) if the value of the **disputeResolutionMethod** variable in the **AgreementDetailsV1** struct argument used in the Adoption Procedures sets forth or refers to another dispute resolution procedure, such other dispute resolution procedure.
- 6.14 “Effective Time”** means the date and time of completion of the Adoption Procedures.
- 6.15 “Ethereum”** means, at any time, the canonical Blockchain System of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network.
- 6.16 “Ethereum-Finalization” or “Ethereum-Finalized”** means, with respect to a transaction, operation or state on a Designated Blockchain System, that: (a) such transaction, operation or state (or the results or record thereof, which may include state roots or calldata committed to Ethereum by a layer-2/L2 Blockchain System) has been recorded in a block of the Ethereum Blockchain; and (b) such block has been fully finalized in accordance with the checkpoint finalization

algorithm of the Ethereum consensus protocol; *provided, however*, that for Designated Blockchains that are L2s using ‘optimistic verification’, where the Token Exchange does not exclusively involve Blockchain Tokens that are native to such Designated Blockchain, such finalization of the Token Exchange shall also require expiration of the relevant ‘challenge period’ for withdrawals from the Designated Blockchain to Ethereum.

6.17 “*Expiration Time*” means the date and time represented by the `expirationTime` uint256 parameter set during the Adoption Procedures.

6.18 “*Governing Jurisdiction*” means the jurisdiction referred to in [Section 6.1\(a\)\(viii\)](#).

6.19 “*Legal Proceeding*” means any private or governmental action, suit, litigation, arbitration, claim, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding), hearing, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before, or otherwise involving, any court or other governmental entity or any arbitrator or arbitration panel.

6.20 “*Legal Requirement*” means any federal, state, local, municipal, foreign or other law, statute, legislation, constitution, principle of common law, resolution, ordinance, code, edict, decree, proclamation, treaty, convention, rule, regulation, ruling, directive, pronouncement, requirement, specification, determination, decision, opinion or interpretation issued, enacted, adopted, passed, approved, promulgated, made, implemented or otherwise put into effect by or under the authority of any governmental body.

6.21 “*LeXscroW Smart Contract*” means a `DoubleTokenLeXscroW.sol` Smart Contract deployed by the Smart Contract at address `0x6f80D72e1AD42Be214CD6C7A5B79E13113344C97` on the Designated Blockchain System (the official MetaLeX deployment of `DoubleTokenLeXscroWFactory.sol`) through the Ricardian Tripler Factory Smart Contract during the Adoption Procedures, configured with the applicable parameters from the `AgreementDetailsv1` struct referred to in [Section 6.1\(a\)](#), including the details of the Proposing Party and Confirming Party as the `buyer` and `seller` of their respective `lockedAssets`.

6.22 A “*Material Adverse Exception Event*” on a Designated Smart Contract means that one or more of the following has occurred, is occurring or would reasonably be expected to occur:

- (a) a Consensus Attack adversely affecting the results or operations of such Designated Smart Contract;
- (b) a change to the consensus rules of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract or could reasonably be expected to result in a “contentious hard fork” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum;
- (c) a “reorganization” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract;

- (d) such Designated Smart Contract having become inoperable, inaccessible or unusable, or any Blockchain Tokens under the control of such Designated Smart Contract having become permanently “frozen,” “stuck” or non-transferable (where such a condition shall be deemed “permanent” if such condition would persist except in the event of a change to the consensus rules of the Designated Blockchain System or Ethereum that is not reasonably expected to occur in the near future), including as the result of any code library or repository incorporated by reference into such Designated Smart Contract or any other smart contract or oracle on which such Designated Smart Contract depends in whole or in part having become inoperable, inaccessible or unusable or having itself suffered a Material Adverse Exception Event, *mutatis mutandis*;
- (e) a material and adverse effect on the use, functionality or performance of such Designated Smart Contract as the result of a clear and manifest bug, defect or error in such Designated Smart Contract, as evidenced by the failure of such Designated Smart Contract to function in accordance with provisions of this Agreement expressly pertaining to such Designated Smart Contract or by documentation or other evidence prepared contemporaneously with the Designated Smart Contract source code demonstrating that the intended functioning of such Designated Smart Contract differs materially from the actual functioning as a result of such bug, defect or error;
- (f) such Designated Smart Contract or any of the Blockchain Tokens controlled by such Designated Smart Contract becomes subject to an Order or applicable Legal Requirement that permanently or temporarily prohibits or restrains such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would prohibit or restrain such Designated Smart Contract) from executing any function or operation it would otherwise reasonably be expected to execute or permanently or temporarily orders or directs such Designated Smart Contract (or that, if such Designated Smart Contract were a Person, would order or direct such Designated Smart Contract) to take an action or bring about a circumstance it would otherwise not reasonably be expected to take or bring about; or
- (g) either Party becomes subject to an Order or applicable Legal Requirement requiring such Party to cause such Designated Smart Contract to take or refrain from taking any action or requiring such Party to take or refrain from taking any action with respect to any of the Blockchain Tokens of such Party that are subject to this Agreement, in each case, which it is not within the power of such Party to comply with in light of the nature of the Designated Contracts; *provided, however*, that to trigger this clause ‘(g)’ pursuant to an applicable Legal Requirement, a Party must obtain, and share with the other Party, from a reputable law firm of 15 lawyers or more in the jurisdiction of the relevant Legal Requirement a written legal opinion to the effect that both: (i) such Legal Requirement applies; and (ii) such Legal Requirement requires the specified action or inaction.

6.23 “*MetaLeX*” means MetaLeX Labs, Inc., a Delaware corporation.

6.24 “*MetaLeX Donation*” means the sum of: (a) 0.2% of the Proposing Party Tokens; and (b) 0.2% of the Confirming Party Tokens.

6.25 “*Order*” means any restraining order, preliminary or permanent injunction, stay or other order, writ, injunction, judgment or decree that either: (a) is issued by a court of competent jurisdiction, or (b) arises by operation of applicable law as if issued by a court of competent jurisdiction, including, in the case of clause ‘(b)’ an automatic stay imposed by applicable law upon the filing of a petition for bankruptcy.

6.26 “*Parties*” means the Proposing Party and the Confirming Party.

6.27 “*Proposing Party*” means the person who completed the Adoption Procedures by successfully calling the `proposeDoubleTokenLeXscroWAgreement` function of the Ricardian Tripler Factory Smart Contract (with the execution of such function being Ethereum-Finalized) and whose name and other applicable information is contained in one of the `Party` struct arguments of the `AgreementDetailsV1` struct argument used in the Adoption Procedures.

6.28 “*Proposing Party Tokens*” means the Blockchain Tokens referred to in [Section 6.1\(a\)\(iii\)](#).

6.29 “*Ricardian Tripler Factory Smart Contract*” means the official MetaLeX deployment of `RicardianTriplerDoubleTokenLeXscroW.sol`, being the Smart Contract at address `0xA2Ed1cfc90aF66760f30CcC9dc0e992c8731BF6c` on the Designated Blockchain System.

6.30 “*Smart Contract*” means any executable bytecode (commonly known as ‘smart contracts’) deployed to a Blockchain System for operation by node operators running validators, sequencers or similar network operators on such Blockchain System.

6.31 “*Token Exchange*” has the meaning set forth in [Section 1.1](#).

EXHIBIT A

BINDING CONFIDENTIAL ARBITRATION

- (a) Subject to clause ‘(c)’ of this Exhibit A, the Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any dispute, suit, action or other proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement (“**Disputes**”), (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.
- (b) Each Party will bear its own costs in respect of any Disputes.
- (c) Unless otherwise agreed in a written agreement signed by both Parties, all Disputes shall be resolved by confidential, binding arbitration to be seated in the Governing Jurisdiction and conducted in the English language by a panel of three arbitrators pursuant to the rules of the International Chamber of Commerce (the “**Rules**”). The arbitrators shall be appointed in accordance with the procedures set out in the Rules. The award or decision of a majority of the arbitrators shall be final and binding upon the Parties and the Parties expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of such majority. The judgment of any award or decision may be entered in any court having competent jurisdiction to the extent deemed reasonably necessary by the Party prevailing in the Arbitration, and the prevailing Party shall have all rights of a judgment creditor as to such Arbitration award in such jurisdiction. Except as provided in the preceding sentence, no Party shall (or shall permit its representatives to) commence, continue or pursue any Dispute in any court; provided, however, that each Party shall be entitled to seek (in accordance with clause ‘(a)’ of this Exhibit A) a preliminary injunction, temporary restraining order or similar provisional relief to prevent threatened or ongoing breaches of this Agreement or to provisionally enforce specifically the terms and provisions of this Agreement, this being in addition to any other remedy to which each Party is entitled at law or in equity.
- (d) EACH PARTY HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY CLAIM OR CAUSE OF ACTION BASED UPON OR ARISING OUT OF THIS AGREEMENT OR THE SUBJECT MATTER HEREOF. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS. THIS SECTION HAS BEEN FULLY DISCUSSED BY EACH OF THE PARTIES HERETO AND THESE PROVISIONS WILL NOT BE SUBJECT TO ANY EXCEPTIONS. EACH PARTY HERETO HEREBY FURTHER WARRANTS AND REPRESENTS THAT SUCH PARTY HAS REVIEWED THIS WAIVER WITH ITS LEGAL COUNSEL, AND THAT SUCH PARTY KNOWINGLY

AND VOLUNTARILY WAIVES ITS JURY TRIAL RIGHTS FOLLOWING
CONSULTATION WITH LEGAL COUNSEL.

EXHIBIT B

COURT ADJUDICATION

The Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any dispute, suit, action or other proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement (“*Disputes*”), (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.

EXHIBIT C

METALEX TERMS, LICENSE, DISCLAIMERS

This legal template and all associated applications, smart contracts, and software code are delivered on an as-is, where-is basis, without representation, warranty, guarantee, assurances or advice of any kind. MetaLeX makes no representations regarding the sufficiency of the CyTEA template, and associated Smart Contracts and web application, for compliance with any law in any jurisdiction. The Parties are solely responsible for determining the lawfulness of the CyTEA for any particular purpose in any jurisdiction.

The CyTEA and associated Smart Contracts are provided as agreement templates only and do not constitute financial, investment, or other professional advice. MetaLeX does not endorse or recommend any specific investment strategy or the exchange of any particular Blockchain Tokens. The Parties are advised to consult with financial advisors, investment professionals, or other experts to assess the financial implications and risks of engaging in token exchanges or any related activities. MetaLeX disclaims any liability for financial decisions made based on the use or interpretation of the CyTEA and associated Smart Contracts.

MetaLeX does not assume responsibility for the contents of, or the consequence of using, the CyTEA template, the associated web application from MetaleX, any Designated Blockchain System, Ethereum, or any Smart Contracts. MetaLeX does not owe you any attorney-client confidentiality, privilege or other duties. Before using any of these forms, you should consult with a lawyer licensed in the relevant jurisdiction(s).

Each Party acknowledges and agrees:

- (a) it had sufficient opportunity to review the source code of each Designated Smart Contracts and any applicable parameters, dependencies, oracles, interfaces, and other software and materials relevant thereto (the “*Source Code*”),
- (b) it is sufficiently sophisticated in understanding the Source Code and the relevant technology generally or has consulted with a third party with such sufficient technical sophistication;
- (c) it understands the functionality, limitations, and risks of the Source Code for its intended uses and compliance with this Agreement, and that it is entering into this Agreement with full knowledge and acknowledgment thereof;
- (d) it acknowledges and agrees that the MetaLeX Donation will automatically be deducted from the Parties’ deposited tokens in connection with the execution of the Token Exchange and that such payment is final, irrevocable, and non-refundable, and that MetaLeX is relying on, and shall be a third-party beneficiary of the Agreement for purposes of enforcing, all representations and warranties of the Parties set forth in Section 2 pertaining to the lawfulness of such funds and otherwise;
- (e) the MetaLeX Donation is paid to MetaLeX as a function of the Smart Contract, and does not constitute an agreement for services of any type between MetaLeX and any Party. MetaLeX does not owe any duty to any Party hereto; and
- (f) MetaLeX will not provide any service of any type to either Party in exchange for the MetaLeX Donation, and the MetaLeX Donation does not constitute a fee or commission to MetaLeX as such term is used in Section 2.6 herein or otherwise.